

HOUSE BILL No. 1193

DIGEST OF INTRODUCED BILL

Citations Affected: IC 22-9; IC 22-9.5.

Synopsis: Civil rights commission. Provides that the civil rights commission (commission) may not represent a private individual in a civil action filed in circuit or superior court. Requires the party that elects to have claims asserted in a finding of reasonable cause decided in a civil action to file the civil action. Specifies that the commission may order damages to restore an aggrieved party's losses, if the commission determines the party has incurred losses as a result of a discriminatory housing practice. Provides that the commission may only represent the state in a civil action and repeals a provision allowing a court to award monetary damages in those cases. Authorizes the commission to investigate unconstitutional practices if no other state agency has jurisdiction to investigate these practices. Conforms the circumstances under which the commission may be required to pay attorney's fees to the circumstances under which an agency may be required to pay fees under the administrative orders and proceedings act (AOPA).

Effective: July 1, 2026.

Jeter

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1193

A BILL FOR AN ACT to amend the Indiana Code concerning state and local administration.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 22-9-1-2, AS AMENDED BY P.L.136-2014,
2 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 2. (a) It is the public policy of the state to provide
4 all of its citizens equal opportunity for education, employment, access
5 to public conveniences and accommodations, and acquisition through
6 purchase or rental of real property, including but not limited to housing,
7 and to eliminate segregation or separation based solely on race,
8 religion, color, sex, disability, national origin, or ancestry, since such
9 segregation is an impediment to equal opportunity. Equal education
10 and employment opportunities and equal access to and use of public
11 accommodations and equal opportunity for acquisition of real property
12 are hereby declared to be civil rights.

13 (b) The practice of denying these rights to properly qualified
14 persons by reason of the race, religion, color, sex, disability, national
15 origin, or ancestry of such person is contrary to the principles of
16 freedom and equality of opportunity and is a burden to the objectives
17 of the public policy of this state and shall be considered as



discriminatory practices. The promotion of equal opportunity without regard to race, religion, color, sex, disability, national origin, or ancestry through reasonable methods is the purpose of this chapter.

(c) It is also the public policy of this state to protect employers, labor organizations, employment agencies, property owners, real estate brokers, builders, and lending institutions from unfounded charges of discrimination.

(d) It is hereby declared to be contrary to the public policy of the state and an unlawful practice for any person, for profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, religion, color, sex, disability, national origin, or ancestry.

(e) The general assembly recognizes that on February 16, 1972, there are institutions of learning in Indiana presently and traditionally following the practice of limiting admission of students to males or to females. It is further recognized that it would be unreasonable to impose upon these institutions the expense of remodeling facilities to accommodate students of both sexes, and that educational facilities of similar quality and type are available in coeducational institutions for those students desiring such facilities. It is further recognized that this chapter is susceptible of interpretation to prevent these institutions from continuing their traditional policies, a result not intended by the general assembly. Therefore, the amendment effected by Acts 1972, P.L.176, is desirable to permit the continuation of the policies described.

(f) It is against the public policy of the state and a discriminatory practice for an employer to discriminate against a prospective employee on the basis of status as a veteran by:

(1) refusing to employ an applicant for employment on the basis that the applicant is a veteran of the armed forces of the United States; or

(2) refusing to employ an applicant for employment on the basis that the applicant is a member of the Indiana National Guard or member of a reserve component.

(g) It is against the public policy of the state and an unconstitutional practice for any person to violate another person's rights protected by the Constitution of the United States or the Constitution of the State of Indiana.

~~(g)~~ **(h)** This chapter shall be construed broadly to effectuate its purpose.

SECTION 2. IC 22-9-1-3, AS AMENDED BY P.L.213-2016,



SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. As used in this chapter:

(a) "Person" means one (1) or more individuals, partnerships, associations, organizations, limited liability companies, corporations, labor organizations, cooperatives, legal representatives, trustees, trustees in bankruptcy, receivers, and other organized groups of persons.

(b) "Commission" means the civil rights commission created under section 4 of this chapter.

(c) "Director" means the director of the civil rights commission.

(d) "Deputy director" means the deputy director of the civil rights commission.

(e) "Commission attorney" means the deputy attorney general, such assistants of the attorney general as may be assigned to the commission, or such other attorney as may be engaged by the commission.

(f) "Consent agreement" means a formal agreement entered into in lieu of adjudication.

(g) "Affirmative action" means those acts that the commission determines necessary to assure compliance with the Indiana civil rights law.

(h) "Employer" means the state or any political or civil subdivision thereof and any person employing six (6) or more persons within the state, except that the term "employer" does not include:

(1) any nonprofit corporation or association organized exclusively for fraternal or religious purposes;

(2) any school, educational, or charitable religious institution owned or conducted by or affiliated with a church or religious institution; or

(3) any exclusively social club, corporation, or association that is not organized for profit.

(i) "Employee" means any person employed by another for wages or salary. However, the term does not include any individual employed:

(1) by the individual's parents, spouse, or child; or

(2) in the domestic service of any person.

(j) "Labor organization" means any organization that exists for the purpose in whole or in part of collective bargaining or of dealing with employers concerning grievances, terms, or conditions of employment or for other mutual aid or protection in relation to employment.

(k) "Employment agency" means any person undertaking with or without compensation to procure, recruit, refer, or place employees.

(l) "Discriminatory practice" means:



(1) the exclusion of a person from equal opportunities because of race, religion, color, sex, disability, national origin, ancestry, or status as a veteran;

(2) a system that excludes persons from equal opportunities because of race, religion, color, sex, disability, national origin, ancestry, or status as a veteran;

(3) the promotion of racial segregation or separation in any manner, including but not limited to the inducing of or the attempting to induce for profit any person to sell or rent any dwelling by representations regarding the entry or prospective entry in the neighborhood of a person or persons of a particular race, religion, color, sex, disability, national origin, or ancestry;

(4) a violation of IC 22-9-5 that occurs after July 25, 1992, and is committed by a covered entity (as defined in IC 22-9-5-4);

(5) the performance of an abortion solely because of the race, color, sex, disability, national origin, or ancestry of the fetus; or

(6) a violation of any of the following statutes protecting the right of conscience regarding abortion:

(A) IC 16-34-1-4.

(B) IC 16-34-1-5.

(C) IC 16-34-1-6.

Every discriminatory practice relating to the acquisition or sale of real estate, education, public accommodations, employment, or the extending of credit (as defined in IC 24-4.5-1-301.5) shall be considered unlawful unless it is specifically exempted by this chapter.

(m) "Public accommodation" means any establishment that caters or offers its services or facilities or goods to the general public.

(n) "Complainant" means:

(1) any individual charging on the individual's own behalf to have been personally aggrieved by a discriminatory **practice or unconstitutional practice**; or

(2) the director or deputy director of the commission charging that a discriminatory **practice or unconstitutional practice** was committed against a person (other than the director or deputy director) or a class of people, in order to vindicate the public policy of the state (as defined in section 2 of this chapter).

(o) "Complaint" means any written grievance that is:

(1) sufficiently complete and filed by a complainant with the commission; or

(2) filed by a complainant as a civil action in the circuit or superior court having jurisdiction in the county in which the alleged discriminatory **practice or unconstitutional practice**



1 occurred.

2 The original of any complaint filed under subdivision (1) shall be
3 signed and verified by the complainant.

4 (p) "Sufficiently complete" refers to a complaint that includes:

5 (1) the full name and address of the complainant;

6 (2) the name and address of the respondent against whom the
7 complaint is made;

8 (3) the alleged discriminatory **practice or unconstitutional**
9 **practice** and a statement of particulars thereof;

10 (4) the date or dates and places of the alleged discriminatory
11 **practice or unconstitutional** practice and if the alleged
12 discriminatory **practice or unconstitutional** practice is of a
13 continuing nature the dates between which continuing acts of
14 discrimination **or unconstitutional practices** are alleged to have
15 occurred; and

16 (5) a statement as to any other action, civil or criminal, instituted
17 in any other form based upon the same grievance alleged in the
18 complaint, together with a statement as to the status or disposition
19 of the other action.

20 No complaint shall be valid unless filed within one hundred eighty
21 (180) days from the date of the occurrence of the alleged
22 discriminatory **practice or unconstitutional** practice.

23 (q) "Sex" as it applies to segregation or separation in this chapter
24 applies to all types of employment, education, public accommodations,
25 and housing. However:

26 (1) it shall not be a discriminatory practice to maintain separate
27 restrooms;

28 (2) it shall not be an unlawful employment practice for an
29 employer to hire and employ employees, for an employment
30 agency to classify or refer for employment any individual, for a
31 labor organization to classify its membership or to classify or refer
32 for employment any individual, or for an employer, labor
33 organization, or joint labor management committee controlling
34 apprenticeship or other training or retraining programs to admit
35 or employ any other individual in any program on the basis of sex
36 in those certain instances where sex is a bona fide occupational
37 qualification reasonably necessary to the normal operation of that
38 particular business or enterprise; and

39 (3) it shall not be a discriminatory practice for a private or
40 religious educational institution to continue to maintain and
41 enforce a policy of admitting students of one (1) sex only.

42 (r) "Disabled" or "disability" means the physical or mental condition



of a person that constitutes a substantial disability. In reference to employment under this chapter, "disabled or disability" also means the physical or mental condition of a person that constitutes a substantial disability unrelated to the person's ability to engage in a particular occupation.

(s) "Veteran" means:

- (1) a veteran of the armed forces of the United States;
- (2) a member of the Indiana National Guard; or
- (3) a member of a reserve component.

(t) "Unconstitutional practice" has the meaning set forth in IC 22-9-15-4.

SECTION 3. IC 22-9-1-6, AS AMENDED BY P.L.205-2019, SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) The commission shall establish and maintain a permanent office in the city of Indianapolis.

(b) Except as it concerns judicial review, the commission may adopt rules under IC 4-22-2 to implement this chapter.

(c) The commission shall formulate policies to effectuate the purposes of this chapter and make recommendations to agencies and officers of the state or local subdivisions thereof to effectuate such policies. The several departments, commissions, divisions, authorities, boards, bureaus, agencies, and officers of the state or any political subdivision or agency thereof shall furnish the commission, upon its request, all records, papers, and information in their possession relating to any matter before the commission.

(d) The commission shall receive and investigate complaints alleging discriminatory **practices or unconstitutional** practices. The commission shall not hold hearings in the absence of a complaint. All investigations of complaints shall be conducted by staff members of the civil rights commission or their agents.

(e) The commission may create such advisory agencies and conciliation councils, local or statewide, as will aid in effectuating the purposes of this chapter. The commission may itself, or it may empower these agencies and councils to:

- (1) study the problems of discrimination in the areas covered by section 2 of this chapter when based on race, religion, color, sex, handicap, national origin, or ancestry; and
- (2) foster through community effort, or otherwise, good will among the groups and elements of the population of the state.

These agencies and councils may make recommendation to the commission for the development of policies and procedures in general. Advisory agencies and conciliation councils created by the commission



1 shall be composed of representative citizens serving without pay, but
2 with reimbursement for reasonable and necessary actual expenses.

3 (f) The commission may issue such publications and such results of
4 investigations and research as in its judgment will tend to promote
5 good will and minimize or eliminate discrimination because of race,
6 religion, color, sex, handicap, national origin, or ancestry.

7 (g) The commission shall prevent any person from discharging,
8 expelling, or otherwise discriminating **or retaliating** against any other
9 person because the person filed a complaint, testified in any hearing
10 before this commission, or in any way assisted the commission in any
11 matter under its investigation.

12 (h) The commission may hold hearings, subpoena witnesses, compel
13 their attendance, administer oaths, take the testimony of any person
14 under oath, and require the production for examination of any books
15 and papers relating to any matter under investigation or in question
16 before the commission. The commission may make rules as to the
17 issuance of subpoenas by individual commissioners. Contumacy or
18 refusal to obey a subpoena issued under this section shall constitute a
19 contempt. All hearings shall be held within Indiana at a location
20 determined by the commission. A citation of contempt may be issued
21 upon application by the commission to the circuit or superior court in
22 the county in which the hearing is held or in which the witness resides
23 or transacts business.

24 (i) The commission may:

25 (1) before July 1, 2020, appoint administrative law judges other
26 than commissioners; and

27 (2) after June 30, 2020, request assignment of an administrative
28 law judge (as defined in IC 4-21.5-1-2);

29 when an appointment is deemed necessary by a majority of the
30 commission. The administrative law judges shall be members in good
31 standing before the bar of Indiana and shall be appointed by the
32 chairman of the commission. An administrative law judge appointed
33 under this subsection ~~shall have~~ **has** the same powers and duties as a
34 commissioner sitting as an administrative law judge. However, the
35 administrative law judge may not issue subpoenas.

36 (j) The commission shall state its findings of fact after a hearing
37 and, if the commission finds a person has engaged in an unlawful
38 discriminatory **practice or unconstitutional** practice, shall cause to be
39 served on this person an order requiring the person to cease and desist
40 from the unlawful discriminatory **practice or unconstitutional**
41 practice and requiring the person to take further affirmative action as
42 will effectuate the purposes of this chapter, including but not limited



1 to the power:

2 (1) to restore the complainant's losses incurred as a result of
3 discriminatory **or unconstitutional** treatment, as the commission
4 may deem necessary to assure justice; however, except in
5 discriminatory practices involving veterans, this specific
6 provision when applied to orders pertaining to employment shall
7 include only wages, salary, or commissions;

8 (2) to require the posting of notice setting forth the public policy
9 of Indiana concerning civil rights and the respondent's compliance
10 with the policy in places of public accommodations;

11 (3) to require proof of compliance to be filed by the respondent at
12 periodic intervals; and

13 (4) to require a person who has been found to be in violation of
14 this chapter and who is licensed by a state agency authorized to
15 grant a license to show cause to the licensing agency why the
16 person's license should not be revoked or suspended.

17 When an employer has been found to have committed a discriminatory
18 practice in employment by failing to employ an applicant on the basis
19 that the applicant is a veteran, the order to restore the veteran's losses
20 may include placing the veteran in the employment position with the
21 employer for which the veteran applied.

22 (k) Judicial review of a cease and desist order or other affirmative
23 action as referred to in this chapter may be obtained under IC 22-9-8.
24 If no proceeding to obtain judicial review is instituted within thirty (30)
25 days from receipt of notice by a person that an order has been made by
26 the commission, the commission, if it determines that the person upon
27 whom the cease and desist order has been served is not complying or
28 is making no effort to comply, may obtain a decree of a court for the
29 enforcement of the order in circuit or superior court upon showing that
30 the person is subject to the commission's jurisdiction and resides or
31 transacts business within the county in which the petition for
32 enforcement is brought.

33 (l) If, upon all the evidence, the commission shall find that a person
34 has not engaged in any unlawful practice or violation of this chapter,
35 the commission shall state its findings of facts and shall issue and
36 cause to be served on the complainant an order dismissing the
37 complaint as to the person.

38 (m) The commission may furnish technical assistance requested by
39 persons subject to this chapter to further compliance with this chapter
40 or with an order issued under this chapter.

41 (n) The commission shall promote the creation of local civil rights
42 agencies to cooperate with individuals, neighborhood associations, and



1 state, local, and other agencies, both public and private, including
 2 agencies of the federal government and of other states.

3 (o) The commission may reduce the terms of conciliation agreed to
 4 by the parties to writing (to be called a consent agreement) that the
 5 parties and a majority of the commissioners shall sign. When signed,
 6 the consent agreement shall have the same effect as a cease and desist
 7 order issued under subsection (j). If the commission determines that a
 8 party to the consent agreement is not complying with it, the
 9 commission may obtain enforcement of the consent agreement in a
 10 circuit or superior court upon showing that the party is not complying
 11 with the consent agreement and the party is subject to the commission's
 12 jurisdiction and resides or transacts business within the county in
 13 which the petition for enforcement is brought.

14 (p) In lieu of investigating a complaint and holding a hearing under
 15 this section, the commission may issue an order based on findings and
 16 determinations by the federal Department of Housing and Urban
 17 Development or the federal Equal Employment Opportunity
 18 Commission concerning a complaint that has been filed with one (1) of
 19 these federal agencies and with the commission. The commission shall
 20 adopt by rule standards under which the commission may issue such an
 21 order.

22 (q) Upon notice that a complaint is the subject of an action in a
 23 federal court, the commission shall immediately cease investigation of
 24 the complaint and may not conduct hearings or issue findings of fact or
 25 orders concerning that complaint.

26 SECTION 4. IC 22-9-1-11 IS AMENDED TO READ AS
 27 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. In addition to its
 28 power to investigate the discriminatory **practices or unconstitutional**
 29 practices referred to in this chapter, the commission may receive
 30 written complaints of violation of this chapter or other discriminatory
 31 practices based upon race, religion, color, sex, national origin, or
 32 ancestry and to investigate such complaints as it deems meritorious, or
 33 to conduct such investigation in the absence of complaints whenever
 34 it deems it in the public interest. It may transmit to the general
 35 assembly its recommendations for legislation designed to aid in the
 36 removing of such discrimination.

37 SECTION 5. IC 22-9-1-17, AS AMENDED BY P.L.100-2012,
 38 SECTION 60, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 39 JULY 1, 2026]: Sec. 17. (a) If a timely election is made under section
 40 16 of this chapter, the complainant may file a civil action in a circuit or
 41 superior court having jurisdiction in the county in which a
 42 discriminatory **practice or unconstitutional** practice allegedly



1 occurred.

2 (b) If the court finds that a discriminatory **practice or**
 3 **unconstitutional** practice has occurred the court may grant the relief
 4 allowed under ~~IC 22-9-1-6(j)~~. **section 6(j) of this chapter.**

5 (c) A civil action filed under this section must be tried by the court
 6 without benefit of a jury.

7 **(d) The commission may not represent the plaintiff in a civil**
 8 **action filed under this section.**

9 SECTION 6. IC 22-9-1-18 IS AMENDED TO READ AS
 10 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 18. (a) If a timely
 11 election is not made under section 16 of this chapter, the commission
 12 shall schedule a hearing on the finding of probable cause.

13 (b) Except as provided in subsection (c), IC 4-21.5 governs a
 14 hearing under this section.

15 (c) A proceeding under this section may not continue regarding an
 16 alleged discriminatory **practice or unconstitutional** practice after the
 17 filing of a civil action.

18 (d) IC 22-9-8 governs appeal of a final order issued under this
 19 section.

20 SECTION 7. IC 22-9-15 IS ADDED TO THE INDIANA CODE AS
 21 A **NEW CHAPTER** TO READ AS FOLLOWS [EFFECTIVE JULY
 22 1, 2026]:

23 **Chapter 15. Unconstitutional Practices**

24 **Sec. 1. As used in this chapter, "commission" refers to the civil**
 25 **rights commission.**

26 **Sec. 2. As used in this chapter, "person" has the meaning set**
 27 **forth in Section 701 of the Civil Rights Act of 1964 (42 U.S.C.**
 28 **2000e).**

29 **Sec. 3. As used in this chapter, "state agency" means an**
 30 **authority, a board, a branch, a commission, a committee, a**
 31 **department, a division, or another instrumentality of the executive,**
 32 **including the administrative department of state government.**

33 **Sec. 4. As used in this chapter, "unconstitutional practice"**
 34 **means an action that violates a person's rights protected by the**
 35 **Constitution of the United States or the Constitution of the State of**
 36 **Indiana, including a right relating to parenting, education, religion,**
 37 **and speech.**

38 **Sec. 5. A person may not commit an unconstitutional practice.**

39 **Sec. 6. A person who feels that the person is the victim of an**
 40 **unconstitutional practice under this chapter may submit a**
 41 **complaint to the civil rights commission under IC 22-9-1-6.**

42 **Sec. 7. (a) The commission may receive a complaint submitted**



under section 6 of this chapter.

(b) If another state agency has jurisdiction to investigate the unconstitutional practice that is the subject of the complaint, the commission:

(1) shall transmit the complaint and any supporting documentation to the appropriate state agency; and

(2) may, after consulting with the state agency, enter into a memorandum of understanding with the state agency to grant the commission enforcement jurisdiction over the complaint.

Sec. 8. The commission has the authority to investigate a complaint that a person is the victim of an unconstitutional practice even if another state agency has jurisdiction to investigate the unconstitutional practice.

SECTION 8. IC 22-9.5-6-6 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) If the commission concludes at any time following the filing of a complaint that prompt judicial action is necessary to carry out the purposes of this article, the commission may file a civil action for appropriate temporary or preliminary relief pending final disposition of the complaint in a circuit or superior court that is located in the county in which the alleged discriminatory housing practice occurred.

(b) A temporary restraining order or other order granting preliminary or temporary relief under this section is governed by the Indiana Rules of Trial Procedure.

(c) The filing of a civil action under this section does not affect the initiation or continuation of administrative proceedings under section 14 of this chapter.

(d) The commission may not represent a private individual in an action filed under this section.

SECTION 9. IC 22-9.5-6-13, AS AMENDED BY P.L.11-2023, SECTION 77, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. (a) If a timely election is made under section 12 of this chapter, the ~~commission~~ **party that made the election** shall, not later than thirty (30) days after the election is made, file a civil action ~~on behalf of the aggrieved person~~ seeking relief under this section in a circuit or superior court that is located in the county in which the alleged discriminatory housing practice occurred.

(b) An aggrieved person may intervene in the action.

(c) If the court finds that a discriminatory housing practice has occurred or is about to occur, the court may grant as relief any relief that a court may grant in a civil action under IC 22-9.5-7.

(d) If monetary relief is sought for the benefit of an aggrieved



1 person who does not intervene in the civil action, the court may not
 2 award the monetary relief if that aggrieved person has not complied
 3 with discovery orders entered by the court.

4 SECTION 10. IC 22-9.5-6-15 IS AMENDED TO READ AS
 5 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. (a) If the
 6 commission determines at a hearing under section 14 of this chapter
 7 that a respondent has engaged in or is about to engage in a
 8 discriminatory housing practice, the commission may order the
 9 appropriate following relief: ~~including actual~~

10 (1) Damages to restore the aggrieved party's losses incurred
 11 as a result of the discriminatory housing practice.

12 (2) Reasonable attorney's fees and court costs. and

13 (3) Other injunctive or equitable relief.

14 (b) To vindicate the public interest, the commission may assess a
 15 civil penalty against the respondent in an amount that does not exceed
 16 the following:

17 (1) Ten thousand dollars (\$10,000) if the respondent has not been
 18 adjudged by order of the commission or a court to have
 19 committed a prior discriminatory housing practice.

20 (2) Except as provided by subsection (c), twenty-five thousand
 21 dollars (\$25,000) if the respondent has been adjudged by order of
 22 the commission or a court to have committed one (1) other
 23 discriminatory housing practice during the five (5) year period
 24 ending on the date of the filing of the finding of reasonable cause.

25 (3) Except as provided by subsection (c), fifty thousand dollars
 26 (\$50,000) if the respondent has been adjudged by order of the
 27 commission or a court to have committed two (2) or more
 28 discriminatory housing practices during the seven (7) year period
 29 ending on the date of the filing of the finding of reasonable cause.

30 (c) If the acts constituting the discriminatory housing practice that
 31 is the object of the finding of reasonable cause are committed by the
 32 same individual who has been previously adjudged to have committed
 33 acts constituting a discriminatory housing practice, the civil penalties
 34 in subsection (b)(2) and (b)(3) may be imposed without regard to the
 35 period of time within which any other discriminatory housing practice
 36 occurred.

37 (d) The commission may sue to recover a civil penalty due under
 38 this section.

39 SECTION 11. IC 22-9.5-7-1 IS AMENDED TO READ AS
 40 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) An aggrieved
 41 person may file a civil action in the circuit or superior court located in
 42 the county in which the alleged discriminatory practice occurred not



1 later than one (1) year after the occurrence of the termination of an
 2 alleged discriminatory housing practice or the breach of a conciliation
 3 agreement entered into under this article, whichever occurs last, to
 4 obtain appropriate relief with respect to the discriminatory housing
 5 practice or breach.

6 (b) The one (1) year period does not include any time during which
 7 an administrative hearing under this article is pending with respect to
 8 a complaint or finding of reasonable cause under this article based on
 9 the discriminatory housing practice. This subsection does not apply to
 10 actions arising from a breach of a conciliation agreement.

11 (c) An aggrieved person may file an action under this section
 12 whether or not a complaint has been filed under IC 22-9.5-6 and
 13 without regard to the status of any complaint filed under IC 22-9.5-6.

14 (d) If the commission has obtained a conciliation agreement with the
 15 consent of an aggrieved person, the aggrieved person may not file an
 16 action under this section with respect to the alleged discriminatory
 17 housing practice that forms the basis for the complaint except to
 18 enforce the terms of the agreement.

19 (e) An aggrieved person may not file an action under this section
 20 with respect to an alleged discriminatory housing practice that forms
 21 the basis of a finding of reasonable cause issued by the commission if
 22 the commission has begun a hearing on the record under this article
 23 with respect to the finding of reasonable cause.

24 **(f) The commission may not represent the aggrieved person in**
 25 **a civil action filed under this section.**

26 SECTION 12. IC 22-9.5-8.1-1 IS AMENDED TO READ AS
 27 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. **(a)** The commission
 28 may file a civil action for appropriate relief if the commission has
 29 reasonable cause to believe that:

30 (1) a person is engaged in a pattern or practice of resistance to the
 31 full enjoyment of any right granted by this article; or

32 (2) a person has been denied any right granted by this article and
 33 that denial raises an issue of general public importance.

34 An action under this section may be filed in a circuit or superior court
 35 located in the county in which the alleged pattern, practice, or denial
 36 occurred.

37 **(b) The commission may only represent the state in a civil action**
 38 **filed under this section.**

39 SECTION 13. IC 22-9.5-8.1-2 IS AMENDED TO READ AS
 40 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. In an action filed
 41 under section 1 of this chapter, the court may do the following:

42 (1) Award preventive relief, including a permanent or temporary



1 injunction, restraining order, or other order against the person
 2 responsible for a violation of this article as necessary to assure the
 3 full enjoyment of the rights granted by this article.

4 (2) Award ~~other appropriate relief, including monetary damages,~~
 5 reasonable attorney's fees and court costs.

6 (3) To vindicate the public interest, assess a civil penalty against
 7 the respondent in an amount that does not exceed the following:

8 (A) Fifty thousand dollars (\$50,000) for a first violation.

9 (B) One hundred thousand dollars (\$100,000) for a second or
 10 subsequent violation.

11 SECTION 14. IC 22-9.5-9-1 IS AMENDED TO READ AS
 12 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. **(a)** A court in a civil
 13 action brought under this article or the commission in an administrative
 14 hearing under IC 22-9.5-6-14 may award reasonable attorney's fees to
 15 the prevailing party and assess court costs against the nonprevailing
 16 party.

17 **(b) IC 4-21.5-3-27.5(b) and IC 4-21.5-3-27.5(c) (attorney's fee**
 18 **awards in judicial review cases) do not apply to a civil action**
 19 **brought in a trial court.**

